

AFFIDAVIT/ UNDERTAKING

(For Provisional Registration)

(On Judicial Stamp Paper worth Rs 100)

1. I, Mr. _____ having CNIC/ Passport No. _____ authorized signatory/ partner/ MD/ Proprietor of M/s _____, do hereby solemnly affirm to DGDP, MoDP, Rawalpindi that our firm M/s _____ will apply/ has applied for registration with DGDP, MoDP by submitting all the documents required for the registration on _____ [insert date].

2. In case we do not apply for registration by the date mentioned above or it is found at any stage that our firm has not applied for registration with the DGDP, MoDP as stated above, our firm shall be liable to disciplinary and legal action by the DGDP/ MoDP or any of the organizations of the MoDP.

3. I also accept that any disciplinary and legal action taken by the MoDP or any of its organization against my firm in this regard will not be challenged in any court of law.

Station: _____

Signature : _____

Dated: _____

Name : _____

Appoint in Firm : _____

Note. Give complete address with telephone/ fax numbers and email address.

Attested by Oath Commissioner with Stamp

Directorate of Procurement (Navy) Through Bahria Gate
Near SNID Center, Naval Residential Complex, E-8, Islamabad
Contact: P-34(Pre) 051-9262310, Bahria Gate 0331-5540649,
For General Queries (0900-1300 hrs) - 051-9262306

Tender No & Date _____
Tender Description _____
IT Opening Date _____
Firm Name _____
Postal Address _____
Email Address for Correspondence _____
CEO Name _____ & CNIC _____ (Compulsory)

Contact Person Name _____
Contact Number (Landline _____) (Mobile _____)

Documents to be Attached with Quotation

Firm is to submit its proposal in a sealed envelope which shall contain 03 x Sealed Envelops as per details given below:

Sealed Envelop 1 - Technical Offer in Duplicate			
This envelope must contain 02 x sets of Technical Offer (01 x Original + 01 x Copy). Each Set must contain following documents as per this order and Supplier is to mark tick ✓ against each to ensure that these documents have been attached:			
S No	Document	Original Set	Copy Set
1.	Bank Challan		
2.	Principal Authorization Letter (where applicable)		
3.	Principal Invoice (Muted - without Price) (where applicable)		
4.	DP -1 Form of IT (with compliance remarks)		
5.	DP - 2 Form of IT with compliance remarks against each clause of the Annex A)		
6.	Technical Offer / Specs		
7.	Annex A of IT (with compliance remarks)		
8.	Annex B & C of IT (with compliance remarks)		
9.	DP-3 form of IT (dully filled & signed)		
10.	DGDP Registration Letter (If firm is registered with DGDP)		
11.	Tax Filling Proof		
<u>Sealed Envelop 2 – Earnest Money</u>			
This Envelop must contain Earnest Money only.			
<u>Sealed Envelop 3 – Commercial Offer</u>			
This Envelop must contain following documents:			
1.	Firm's Commercial Offer	01 x Original	
2.	Principal Invoice (where applicable)	01 x Original	
3.	Dully filled DP-2 Form of IT	01 x Original	

Firm's Declaration

It is certified that we have submitted tender in compliance with above instructions and we understand that our offer is liable to rejection if tender is not prepared / packed as per above instructions.

Firm's Authorized Signatures _____

Directorate of Procurement (Navy)
Through Bahria Gate
Near SNID Center, Naval Residential Complex, E-8, Islamabad
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For General Queries (0900-1300 hrs) - 051-9262306
Email: dpn@paknavy.gov.pk

TENDER SUMMARY

Tender No & Date: _____

Tender Description: _____

Technical Opening Date: _____

Commercial Opening Date: _____

Technical Opening Details

S No	Name of the Supplier	OEM	Quoted Model

INVITATION TO TENDER FORM

1. Schedule to Tender No **2690029/R-2609/340081** dated 08 Sep 2026. This tender will be closed for acceptance at **1030 Hours** and will be opened at **1100 Hours** on 30 Sep 2026. Please drop tender in the Tender Box No **204**.
2. You are requested to please use this Performa for price quotation, fill in the prices, affix your stamp on the same, sign it and forward it in original as your Commercial offer along with the covering letter of your firm. If you do not use this form as price quotations your offer might be rejected.
3. You are requested to please attach DP-1 and DP-3 alongwith your quotation duly signed & stamped. Same can be requested from DP (N) at Email dpn@paknavy.gov.pk.

Schedule of Stores

S. NO	DETAIL OF STORES	QTY/ UNIT	UNIT PRICE	18% GST	TOTAL PRICE
1.	<u>DESCRIPTION OF STORE:</u> Bullet Proof Jackets Level-III Colour Pak Marines Camouflage (Large Size)	957 No			
2.	<u>DESCRIPTION OF STORE:</u> Bullet Proof Jackets Level-III Colour Pak Marines Camouflage (Medium Size) a. Specification & Acceptance Criteria is attached as Annex-A. b. General Terms & Conditions is attached as Annex-B. Note: Contracted firm will provide 01 sample (without any additional cost) for functional test trials and acceptance to ECA/ CINA Karachi prior bulk supply to consignee.	957 No			

NOTE:

1. Firm/supplier shall provide correct and valid e-mail and fax No. to ECA/ CINA and DP(N). Supplier/contracting firm shall either provide OEM conformance certificate to ECA/ CINA under intimation to DP (Navy). Hard copy of COC must follow in any case through courier. On receipt, ECA/ CINA shall approach the OEM for verification of conformance certificate issued by the OEM. Companies/firms rendering false OEM conformance certificates will be black listed.
2. Stores will be inspected by ECA/CINA Reps.
3. Firm will submit an Affidavit that the original Earnest money is attached with Commercial

Offer in separate envelope and copy of the same is attached with Technical Offer.

4. Firm will comply/ confirm all above IT clauses, mentioned under Note including specification, packing, general terms and conditions on its technical offer and original technical offer on firm's letter head pad along with DP-1, DP-2 & DP-3 duly signed and stamped on each page are required **in duplicate**.

Above mentioned price includes 18% Sale Tax (Please tick Yes or No)		
Yes	No	
Grand Total		

Terms & Conditions

1. Special Instructions. N/A
2. Terms of Payment.
 - (i). 60% payment on delivery at FOR Karachi as per Para-4 of Annex-B.
 - (ii). 40% payment issue on acceptance certificate and issuance of CRV by Consignee.
3. Origin of Stores. (To be indicated in Technical Offer)
4. Origin of OEM. (To be indicated in Technical Offer)
5. Technical Scrutiny Report. Required (Technical scrutiny of quotation will be carried out by committee nominated by NHQ).
6. Delivery Period. Within 06 Months after signing of the contract. Part delivery/ part payment is allowed.
7. Currency. Pak Rupees
8. Basis for acceptance. FOR
9. Bid Validity. The validity period of quotations must be indicated and should invariably be 120 days from the date of opening of commercial / Financial Proposal offer or 30th June whichever is later. Firm undertakes to extend validity of offer if required by equal number of original bid period (i.e 120 x days as per original offer) i.a.w PPRA Rule-26.
10. Inspection. Inspection will be carried out as per Para-13 of Annex-B.
11. Tendering procedure Single stage - Two Envelop bidding procedure will be followed as per PPRA Rule 36 (b).
12. Earnest Money/ Bid Security: Your tender must be accompanied by a Call Deposit Receipt (CDR) in favor of CMA (DP), Rawalpindi in separate envelope and outside **attached with technical offer**. The

rate of earnest money and its maximum ceil for different categories of firms would be as under:-

**REGISTERED/INDEXED/PRE-QUALIFIED
FIRMS (FOR CONTRACTS ONLY).**

(a) 2% of the quoted value subject to maximum ceiling of Rs. 0.500 Million.

**REGISTERED / PRE-QUALIFIED BUT
UNINDEXED FIRMS.**

(b) 3% of the quoted value subject to maximum ceiling of Rs. 0.750 Million.

**UN-REGISTERED / NOT PRE-QUALIFIED /
UNINDEXED FIRMS.**

(c) 5% of the quoted value subject to maximum ceiling of Rs. 1.000 Million.

13. **Return of Earnest Money:**

(a) Earnest money to the unsuccessful bidders will be returned on finalization of the contract.

(b) Earnest money of the firm/firms with whom contract is concluded will be returned on submission of Bank Guarantee and its acceptance by CMA (DP).

14. **Special Note.**

a. **All Participating firms must submit technical offers in duplicate (one for TSR committee and one for DP (Navy) record).**

b. Unregistered (Not registered with Directorate General Defense Purchase) firms must provide the documentary evidence of their technical and financial capability to undertake the project.

c. Unregistered firms are to submit a certificate along with their Technical offer stating that the firm is not black listed by any government organization and not under disciplinary trial or embargo. Acceptance of firm's offer, firms not registered with DGDP is subject to security clearance. All firms who do not provide requisite documentary or security wise not cleared by DGDP (FS Team) will be rejected.

d. In case of Pakistani firms, sales tax, NTN and income tax registration certificates are to be attached with the offer. These certificates are mandatory with the BID, otherwise offer shall be REJECTED.

e. Company registration certificates are to be attached with offer.

f. Requisite amount of earnest money (in shape of Bank Draft in the favour of CMA (DP)) is to be attached in **separate envelop in sealed condition** with the

Technical offer. Photocopy of the same shall also be attached with DP-2 as a testimony. Cheques/crossed cheques shall not be accepted.

g. Duly completed Form DP-1 and DP-3 are to be attached with Technical Offer in duplicate.

h. DP-2 Form shall also be submitted with Technical Offer without mentioning of prices. Moreover, compliance or otherwise against each para/requirement of Annex A & B duly signed & stamped by firm authorized rep is to be provided for technical scrutiny.

j. Only registered supplier on Active Taxpayers List (ATL) of FBR are eligible to participate in the Tender and submit quote.

k. Release of payments is subject to mandatory submission of Filer Certificate duly issued by FBR showing the name of supplier on Active Taxpayers List (ATL). No payment will be released by CMA (DP) unless latest Filer Certificate duly issued by FBR showing the name of supplier on its Active Taxpayer list is submitted along with payment documents.

Note: In case of failure to comply above instructions, Terms and conditions, offer will be liable for rejection.

**TECHNICAL SPECIFICATION – (1000 EACH) x BULLET PROOF JACKETS LEVEL-III
COLOR PAK MARINES CAMOUFLAGE (LARGE & MEDIUM)**

1. **General** The Bullet proof Jackets are used to provide protection to the upper body of soldier. The equipment is required for general use in service.

2. **Requirement**

a. **Protection Level (PK-III)** It is the minimum protection level required and should provide protection to human body against the bullets of following weapons:

- (1) 6 x Rds of 7.62 x 25mm Tokarev (TT Pistol) from 5m.
- (2) 3 x Rds of 7.62 x 39mm SMG Chinese (AK-47) from 15m.
- (3) 3 x Rds of 5.56 x 45mm INSAS M-16 from 15m.
- (4) 3 x Rds of 7.62 x 51mm Rifle G-3 from 15m.

b. Weight of Jacket with soft : Large : 5.25 (Maximum)
 Armour Front, Rear, Shoulders : Medium: 4.5 (Maximum)
 Integrated Trauma Pack :

c. Front and Back Hard Armour Plates:

- (1) Weight (both plates) : Large: 6.0 kg (Maximum)
 : Medium: 4.6 kg (Maximum)
 :
- (2) Dimension : Large: 350 x 400 mm
 : Medium: 300 x 350 mm
 :
- (3) Shape : Thickness 25mm Maximum
 : Single/Double Curvature (The shape
 : of plate should be curved)
- (4) Minimum Ballistic Area : Minimum 85% of total area

(5) **Construction.** Laminated and should withstand the following ammunition:

- (a) 3 x Rds of 7.62 x 39mm from 15 meters.
- (b) 3 x Rds of 5.56 x 45mm (SS 109) from 15 meters.
- (c) 3 x Rds of 7.62 x 51mm from 15 meters.

d. **Material**

(1) **Insert** It should be made from a number of suitable Kevlar / Aramid / Twaron cloth / composite material layers, stitched together and ends protected. Insert should be water proof or whole should be packed in water proof cloth / material in black / sober / grey color. Soft insert should provide protection of PK Level-IIIA (T.T Pistol



7.62 x 25mm from distance of 5 m)

(2) **Trauma Pack** It should be integral part of the ballistic insert and shall not be detachable.

(3) **Outer Cover** "Cordura" 1000 or equivalent and preferably should be water proofed by suitable treatment. Color should be Pak Marines Camouflage and sample for color pattern will be provided by PN.

e. **Groin Pad** To be provided with Jacket as adjustable accessory with flexible material in triangular shape.

f. **MOLLE SYSTEM** To be provided on the jacket to facilitate installing of adds on equipment like magazine / grenade pouches, GPS, petrol / small pack and hydration system.

3. **General Qualities / Provisions**

a. It should have opening from sides and collar protection.

b. Should be able to withstand rough handling in the field.

c. Carrying Bag should be available in nylon / parachute cloth of good quality for safe/ prolonged storage / protection.

d. The protective material / armour plate should be 3cms below the collar bone and 2cms above the navel of soldier, ensuring free movement of arms, limbs and handing of personal weapons.

e. Should be easy to wear and comfortable over prolonged period.

f. Shelf Life / Service Life of Bullet Proof Jackets should be at least 10 Years.

4. Following may please be ensured:

a. **Shoulder Padding** Should be provided on both shoulders with shoulder straps on left shoulder

b. **Stitching Along the Seams** Double stitching all along the seam.

c. **Waist Belt** It should be provided to fasten the Jacket at waist with double D ring and Velcro or some better arrangement.

d. **Causality Drag** Causality drag holder at back shoulder be provided.

5. **Proven System:** Offered system should be a proven system and earlier inducted in Pak Armed Forces.

The equipment/ machinery shall be of latest version/ OEM certified and may not be older than 01 year at the time of delivery.

GENERAL TERMS & CONDITIONS

S No	SPECIAL INSTRUCTIONS/REQUIREMENTS
1.	Country of Origin Local.
2.	Complete Description / Relevant Information (PPRA rule 10) Bullet Proof Jackets Level-III color Marines Camouflage (Large and Medium size) (Qty-1000 each)
3.	Delivery Schedule a. Within 06 months after CED, on FOR / DDP basis at PNASD NSSD Area West Wharf Road Karachi. b. Part delivery is allowed.
4.	Payment Schedule (1) As per DPP&I-35 (Revised 2024) or as decided by DP(N). (2) 60% payment on completion of following: a. Delivery at FOR / DDP Karachi. b. Successful joint inspection report without any discrepancies. (3) 40% payment on completion of following: a. Issuance of acceptance certificate. b. Issuance of CRV by consignee.
5.	CONTRACT EFFECTIVE DATE (CED) CED shall be established and notified by the Purchaser upon completion of following pre-requisites: a. Contract signing. b. Endorsement by Military Finance i.e FA(N).
6.	BIDDING PROCEDURE This tender shall be floated on Open Tender Basis using Single Stage Two Envelope Bidding procedure.
7.	WARRANTY / GUARANTEE a. Supplier is to guarantee that product is as per specs of the contract. b. Complete equipment including accessories are to be warranted by the supplier for a period of 01 year, for all defects from the date of final acceptance by PN. c. The supplier is to guarantee that all the items supplied under the terms of this contract are of the latest version, OEM certified and brand new. Stores, which are not procured directly from OEM or his authorized dealer/agent/stockiest will not be acceptable. d. The supplier is to guarantee that materials used, whether or not of his manufacture, conform to the international quality standards for such equipment. e. Post delivery, the supplier will replace without any additional cost within 30 days every article or part thereof which before use or in use shall be found defective/ damaged or not within the limits and tolerances of specifications, or in any way not in accordance with the terms of the contract at the time of Joint Inspection. f. In case of supplier's failure to replace the defective stores without any additional cost within 30 days he will refund relevant cost in the currency in which received along with a reasonable compensation as claimed by PN.
8.	COMPENSATION ON BREACH OF CONTRACT If the Supplier fails to supply the contracted stores/equipment or contract is cancelled either on Supplier's Risk & Expense (RE) or without RE or contract becomes ineffective due to default of Supplier or stores/equipment declared defective and causes loss to the Purchaser, Supplier shall be liable to pay to the Purchaser a compensation for loss or inconvenience resulting for his default/defect or from the rescission of this contract. When such default/defect or rescission take place such compensation shall be in excess to the RE amount, if imposed by the competent authority. Compensation amount in terms of money shall be decided by the purchase officer and shall be deposited by Supplier in Government of Pakistan treasury in the currency of contract.
9.	SECRECY The Supplier(s) shall undertake that any information about the sale/purchase of the stores under this contract shall not be communicated to any person, other than the manufacturer of the stores, or to any press or agency not authorized by the DP(N) to receive it. Any breach on this account shall be punishable under the Official Secret Act-1923 in addition to termination of the contract at the risk of Supplier. "In this



	regard 'Non Disclosure Agreement (NDA)' as per format at Appendix-I is to be signed by the firm at the time of signing of contract."
10.	<u>INDEMNITY:</u> The Supplier shall at all times indemnify the Purchaser against all claims which may be made in respect of the stores for infringement of any rights protected by Patent, Registration of Design or Trade Mark and shall take all risks of accidents or damages which may cause a failure of the supply from whatever cause arising and the entire responsibility for the sufficiency of all the means used by him for the fulfillment of the contract provided always that in the event of any claim in respect of alleged breach of Patent, Registered Design or Trade Mark being made against the Purchaser, the Purchaser shall notify the Supplier of the same and the Supplier shall be at liberty to settle any dispute or to conduct any litigation that may arise there from at his own expenses.
11.	<u>SUBLETTING</u> The Supplier shall be entirely responsible for the execution of the contract in all respects according to the terms of the contract. The Supplier shall not sublet, transfer or assign the contract or any part thereof to any other firm/party without prior written permission of the Purchaser.
12.	<u>AMENDMENT IN THE CONTRACT</u> Amendment in the contract, if required, shall be processed in writing by procurement agency upon mutual agreement of both the parties.
13.	<u>ACCEPTANCE CRITERIA</u> a. Firm will provide 01 sample (without any additional cost) for functional test trials. The sample will be randomly selected by ECA / CINA rep. b. Inspection(s) for sample(s) and bulk stores sample(s) shall be carried out by ECA / CINA rep at Firm's Premises respectively upon intimation of the same by firm as appended below: (1). Inspection for dimensional and physical accuracy of sample as per drawing and specifications provided by Firm i.a.w acceptance criteria for inspection of sample/stores. (2). Functional / Ballistic testing of sample to be carried out at Inspectorate of Armament (I of A) Rawalpindi in presence of ECA / CINA rep iaw Pak Army Standards. Further, expenses of ballistic testing through I of A including boarding and lodging of ECA / CINA rep will be born bear by supplier. c. Upon successful functional/ ballistic testing, store will be delivered at PNASD for final joint survey/ inspection by ECA/ CINA, PNASD in the presence of Firm Rep, within 06 months after establishing CED. d. OEM Certificate may be provided for desired protection i.e. complied NIJ Level-III A. e. Offered system should be a proven system and earlier inducted in Pak Armed Forces.
14.	<u>DOCUMENTATION</u> Following documents are required: (a) Operator / user manual. (b) Technical manual. (c) Part Identification list (PILs).
15.	<u>ADDITIONAL PURCHASE</u> Supplier is to agree that in case Purchaser wishes to buy additional quantity/number of stores within next 12 months after the completion date of the contract, the Supplier shall provide the equipment at the cost by calculating inflation rate/appreciation or depreciation rate announced by Government of Supplier's country. The Supplier may however sell stores at a lower cost.
16.	<u>CONSIGNEE CO PNASD</u>
17.	<u>BUY BACK</u> If PN has material supplied by the supplier and purchaser that is no longer required, supplier and purchaser will buy back the said material as credit to this contract at the selling price. If at the final expiry of this contract, the Supplier and purchaser holds spares procured against this contract, which remain unused during the validity of this contract, and following the request from the Supplier and purchaser, within a period of 28 days thereafter, then the supplier and purchaser shall investigate the possibility of buy back at a price and conditions to be mutually agreed.
18.	<u>LIQUIDATED DAMAGES</u> Delay in the supply of stores for first schedule / supply order upto 21 days and for subsequent schedule / supply order upto 15 days will be regarded as grace period available to the supplier and the delivery date will be considered to have been automatically extended upto that limit without issuance of any formal amendment. For delays beyond 21 days and incase of subsequent schedule / supply order for delays

	beyond 15 days, formal amendment to the DP will be required. For purposes of imposing LD, if and when imposed, grace period will be inclusive i.e. LD will be calculated from the original delivery date and not from the expiry of the grace period. LD will be recovered at the rate of upto 2% but not less than 1% of the value of stores supplied late per month or a part of a month for the period exceeding the original DP. The supplier will not be entitled to any reimbursement of any additional taxes, excise duty, sales tax, etc, imposed by the Govt which becomes effective during the grace period and extensions in DP. LD thus imposed will not exceed 10% of the total value excluding taxes/ duties, freight, KPT, insurance charges of the stores delivered late.
19.	<u>RISK PURCHASE</u> In the event of failure on the part of supplier to comply with the contractual obligations, the contract will be cancelled at the risk and expense of the supplier in accordance with DPP-I-35. (Revised 2024).
20.	<u>FORCE MAJEURE</u> a. The parties will not be held responsible for any non- fulfillment or delay in carrying out the contractual obligations due to event of Force Majeure such as Acts of God (earthquake, flood, fire, typhoon, hurricane, mass epidemic diseases), War (military actions, subversive activities or sabotages), Riots, Civil Commotion, Strike, Lockouts, Prohibitive measures of Governments (Prohibition of trade relations with certain countries as a result of United Nations sanctions imposition) directly affecting the Parties and any events or circumstances on which the Parties has no control. b. In order to be deemed force-majeure, the said events should be of extraordinary, unpredictable and unavoidable nature, and occur after this Contract comes into force and be beyond control of the Parties. c. Should the force-majeure circumstances occur, the suffering Party must notify in writing the other Party of such situation within 30 (thirty) days from occurrence thereof. The said notice should contain information about the nature of the circumstances and, if possible, contain an evaluation or estimate of their probable impact upon performance of obligations under the Contract, as well as the time required for such performance. d. Upon termination of the above-mentioned circumstances, the suffered Party should promptly give a relevant written notice to the other Party. The said notice should specify the time, within which performance of obligations under the Contract is being suggested. e. Within reasonable time, the party exposed to force-majeure should transfer to the other Party a Certificate issued by the legal Authorities, as an evidence of occurrence of the force-majeure situation. f. Should the force-majeure situation occur, the timing of performance by the Parties of their respective obligations under the Contract shall be extended adequately, by adding on the duration of such circumstances and consequences thereof. g. Should the force-majeure circumstances continue for more than consecutive 60 (sixty) days, the Parties shall negotiate and coordinate appropriate measures needed to be taken in order to perform their respective obligations under the Contract. If duration of such circumstances exceeds 6 (six) months and the Parties fail to agree on further coordinated measures needed to perform their respective obligations, the Contracting Party (Purchaser) shall have the right to terminate the Contract, whether partially or wholly, free of any subsequent claims, by sending a written termination notice to the other Party (Supplier and purchaser). h. The Purchaser may not claim LD in relation to delays in delivery, provided that such delays have been caused by occurrence of a force-majeure event. j. It is the responsibility of supplier to obtain license/permits etc (if any) in the supplier's country. Failure to obtain the same shall not constitute grounds for "Force Majeure".
21.	<u>PACKING</u> The packing must of international quality standard.
22.	<u>PRICE VARIATION</u> Prices in the schedule of stores of the contract are firm and final.
23.	<u>CERTIFICATE OF CONFORMANCE BY OEM</u> Firm/supplier shall provide correct and valid e-mail and fax No to ECA / CINA and DP(N). Supplier/contracting firm shall either provide OEM Conformance Certificate to ECA / CINA or is to be e-mailed to ECA / CINA under intimation to DP(N). Hard copy of COC must follow in any case through courier. On receipt, ECA / CINA shall approach the OEM for verification of conformance certificate issued by the OEM. Companies/firms rendering false OEM Conformance Certificates will be black listed.OEM's CoC must have following information: - Description of Store alongwith Quantity. - Part/Pattern No of Stores. - Manufacturer Identification (Name Address and Contact No). - Date/period of manufacturing . - List of Serial Numbers, Batch Number or Lot Numbers as embossed/ engraved on the stores.



	(as applicable). f. Details of Test reports (FATs/ OEM Lab Test Report) along with data and tests conducted (as applicable). g. Details of third party testing authority (if their services used). h. List of safety/ regulatory standards (as applicable) j. Conformance to Standard / Specifications quoted in the Contract.
24.	<u>PENALTY</u> The Supplier and purchaser before making the shipment will carry out complete test of the equipment at its facilities to ensure that the same has been manufactured as per specifications. In case the equipment does not pass the test/trials, the supplier and purchaser has the right to outright reject the equipment of impose penalty at the rate of 2-5% of the value of the relevant equipment/items. The penalty shall not absolve the supplier and purchaser to undertake the repairs in Pakistan or on board at his cost and expense including freight charges. This shall be in addition to the penalties and obligations covered in the contract like warranty/guarantee obligations on Form DPL-15.
25.	<u>PERFORMANCE BANK GUARANTEE</u> To ensure timely and correct supply of stores, the firm will furnish an unconditional performance Bank Guarantee. Within 30 days of signing of the contract form a scheduled bank of Pakistan for an amount equal to 10% of the total Final Contract Amount (FCA) value of the contract (on a Judicial Stamp Paper) of appropriate value as per prescribed format. It shall remain in force till 60 days beyond completion of warranty period
26.	<u>DISCREPANCY</u> The consignee will render a discrepancy report to all concerned within 30 days after receipt of stores for discrepancies found in the consignment. The quantities found short are to be made good by the supplier, "without any additional cost" within 30 days
27.	<u>TSR:</u> TSR of the case will be carried out by a committee nominated by NHQ
28.	<u>ARBITRATION</u> Parties shall make their attempt in all disputes arising under this contract through friendly discussions in good faith. In the event that either party shall perceive such friendly discussion to be making insufficient progress towards settlement of disputes) at any time, then such party may be written notice to the other party refer the disputes) final and binding arbitration as provided below: a. The dispute shall be referred for adjudication to two arbitrators one to be nominated by each party who before entering upon the reference shall appoint an umpire by mutual agreement, and if they do not agree a judge of the Superior Court will be requested to appoint the umpire. The arbitration proceedings shall be held in Pakistan and under Pakistani Law. b. The venue of arbitration shall be the place from which the contract is issued or such other places as the Purchaser at his discretion may determine. c. The arbitration award will be firm and final. d. In the course of arbitration the contract shall be continuously be executed except that part which is under arbitration. e. All proceedings under this clause shall be conducted in English language and in writing.
29.	<u>INTEGRITY PACT</u> This contract is required to be supported by integrity pact which is to be signed by Supplier and Purchaser at the time of signing of contract as per format placed at appendix-II.
30.	<u>TERMINATION OF CONTRACT</u> a. If at any time during the currency of the contract Purchaser decides to terminate the contract for any reason whatsoever (other than for reasons of non-delivery) he shall have right to do so by giving the Supplier a registered notice to that effect. In that event the Purchaser shall accept delivery at the contract price and terms of such stores/goods/services which are in the actual process of manufacturing that is completed and ready for delivery within thirty days after receipt by the Supplier of such notice. b. In the case of remainder of the undelivered stores/goods/services the Purchaser may elect either to have any part thereof completed and take the delivery thereof at the contract price or to cancel the remaining quantity and pay to the Supplier for the articles or sub-components or raw materials purchased by the Supplier and are in the actual process of manufacturing at the price to be determined by the Purchaser. In such a case materials in the process of manufacturing shall be delivered by the Supplier to the Purchaser. No payment shall however be made for any materials not yet in the actual process of

	manufacturing on the date notice of cancellation is received. d. Should the Supplier fail to deliver goods/services in time as per terms of contract or fail to render Bank Guarantee within the stipulated time period or any breach of the contract the Purchaser reserves the right to terminate/cancel the contract fully or any part thereof at the risk and expense (RE) of the Supplier.
31.	<u>COURT JURISDICTION</u> Should a situation arise where a party to the contract elects to file the matter in a Civil/ Higher Court, or prefers an appeal review, revision etc in a Higher Court, such matter(s) shall be filed only in the competent Courts at Islamabad.
32.	<u>CHECKING OF SUPPLIES AT CONSIGNEE'S END</u> Upon arrival supplies shall be checked at consignee's end in the presence of the purchase's and supplier's representatives. If for any reason, the supplier decides not to nominate his representative for such checking and advance written notice to this effect shall be given by the supplier to the consignee prior to or immediately upon shipment of stores. In such an event, the supplier shall clearly undertake that the decision of consignee with regard to quantities and description of consignment shall be taken, as final and any discrepancy found shall be made up by the supplier. In all other cases, the consignee shall inform the supplier about arrival of consignment immediately on receipt of stores through fax, if no response from the supplier is received within four working days from initiation of letter through fax, the consignee shall have the right to proceed with the checking without supplier's representative. Consignee's report on checking of stores shall be binding on the supplier in such cases.
33.	<u>END USER</u> All units of Pak Marines / SSG(N).
34.	<u>DISTRIBUTION OF CONTRACT</u> Contracted Firm Dte of Budget SOF&M Dte, NHQ, IBD DAP NHQ, IBD DICP at NSSD, Karachi ECA/CINA, Karachi CO PNASD, Karachi AFA(N), IBD CMA (DP), Rwp

UNDERTAKING / NON-DISCLOSURE CERTIFICATE

1. I _____
(Name & Appointment)

on behalf of _____
(Name for Firm / Supplier and purchaser)

(With address and Telephone number)

2. Do hereby submit an undertaking to abide by the provision of Official Secrets Act 1923 and conditions hereinafter contained. Breach of these provisions on my part or any employee of the firm, in addition to any other penalty under law, will render immediate ceasing of further interaction and meetings.

Sig _____
Status / Appointment _____
Place _____
Date _____

1. Signature of Witness _____
Name (in block capital) _____
CNIC No _____
Address _____

Seal & Date

2. Signature of Witness _____
Name (in block capital) _____
CNIC No _____
Address _____

Seal & Date

Tender No.....

Name of the Firm.....
 DGDP Registration No.....
 Mailing Address.....
 Date.....
 Telephone No.
 Official E-Mail.....
 Fax No
 Mobile No of contact person.....

To:

Directorate of Procurement (Navy)
 through Bahria Gate Near SNIDS
 Centre, CDA Market
 at Naval Residential Complex
 Sector E-8, Islamabad
 Tele : 051-9262310
 Email : dpn@paknavy.gov.pk

Dear Sir

1. I/We hereby offer to supply to the Director of Procurement (Navy) the stores detailed in schedule to the tender inquiry or such portion thereof as you may specify in the acceptance of tender at the prices offered against the said schedule and further agree that this offer will remain valid up to **120 days** and will not be withdrawn or altered in terms of rates quoted and the conditions already stated therein or on before this date. I/we shall be bound by a communication of acceptance to be dispatched within the prescribed time.

2. I/We have understood the Instructions to Tenders and General Conditions Governing Contract in Form No. DDP&I (Revised-2019) included in the pamphlet entitled, Government of Pakistan, Ministry of Defence (Directorate General Defence Purchase) "General Conditions Governing Contracts" and have thoroughly examined the specifications/drawings and/ or patterns quoted in the schedule hereto and am/are fully aware of the nature of the stores required and my/our offer is to supply stores strictly in accordance with the requirements.

3. The following pages have been added to and form part of this tender:

- a.
- b.
- c.

Yours faithfully,

.....
 (Signature of Tenderer)

.....
 (Capacity in which signing)

Address:.....

Date.....

Signature of Witness.....

ADDRESS.....

DIRECTORATE PROCUREMENT (NAVY)

Tender No.....
 Directorate of Procurement (Navy)
 through Bahria Gate Near SNIDS
 Centre, CDA Market
 at Naval Residential Complex
 Sector E-8, Islamabad
 Tele : 051-9262310
 Email : dpn@paknavy.gov.pk

M/s _____

Date _____

INVITATION TO TENDER AND GENERAL INSTRUCTIONS

Dear Sir / Madam,

1. DP (Navy) invites you to tender for the supply of stores/equipment/ services as per details given in attached Schedule to Tender (Form DP-2).

2. **Caution:** This tender and subsequent contract agreement awarded to the successful bidder is governed by the rules / conditions as laid down in PPRA Rules-2004 and DPP&I (Revised 2019) covering general terms & conditions of contracts laid down by MoDP / DGDP. As a potential bidder, it is incumbent upon you and your firm to first acquaint yourself with PPRA Rules 2004 (www.ppra.org.pk) and DPP&I-35 (Revised 2019) (print copy may be obtained from DGDP Registration Cell on Phone No. 051-9270967 before participating in the tender. If your firm / company possesses requisite technical as well financial capability, you must be registered or willing to register with DGDP to qualify for award of contract, which shall be made after security clearance and provision of required registration documents mentioned in Para 15 of this DP-1.

3. **Conditions Governing Contracts.** The „Contract“ made as result of this I/T (Invitation to Tender) i.a.w PPRA Rules 2004 shall mean the agreement entered into between the parties i.e. the „Purchaser“ and the „Seller“ on Directorate General Defence Purchase (DGDP) contract Form “DP-19” in accordance with the law of contract Act, 1872 and those contained in Defence Purchase Procedure & Instructions and DP-35 (Revised 2017) and other special conditions that may be added to given contract for the supply of Defence Stores / Services specified herein.

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4. **Delivery of Tender.** The tender documents covering technical and commercial offers are to be furnished as under:-

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a. **Commercial Offer.** The offer will be in **single** and indicate prices quoted in figures as well as in words in the currency mentioned in IT. It should be clearly marked in fact on a separate sealed envelope “Commercial Offer”, tender number and date of opening. Taxes, duties, freight/transportation, insurance charges etc are to be indicated separately. Total price of the items quoted against the tender is to be clearly mentioned. In case of more than one option offered by the firm, DP(N) reserves the right to accept lowest technically accepted option if more than one options were accepted in Technical Scrutiny Report.

b. **Technical Offer: (Where Applicable).** Should contain all relevant specifications in **DUPLICATE** (or as specified in IT) along with essential literature/brochure, drawings and compliance metrics in a separate sealed envelope and clearly marked “Technical Offer” without prices, with tender number and date of opening. Technical offer shall be opened first; half an hour after the date and time for receipt of tender mentioned in DP-2. Firms are to confirm/comply with IT technical specification in the following format:

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S.No	Technical requirement as per IT	Firm's endorsement (Comply/ Partially Comply/ Non Comply)	Basis of C, PC of NC i.e. Refer to page or brochure	In case of non availability of enclosed proof from brochure/ Literature, quote/ attach additional documents/ data/undertaking as proof of compliance

(Legend: C = Fully Comply, PC = Partially Comply, NC = Not Comply)

(Firms must clearly identify where their offer does not meet or deviates from IT Specs)

c. **Special Instructions.** Tender documents and its conditions may please be read point by point and understood properly before quoting. All tender conditions should be responded clearly. In case of any deviation due to non-acceptance of tender conditions(s), the same should be highlighted alongwith your offered conditions. Tender may however be liable to be rejected.

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d. Firms shall submit their offers in two separate envelopes (i.e. one copy of commercial offer and **two copies of the technical offer** as asked in the IT) and envelopes clearly marked “Technical proposal”, “Commercial proposal” in bold. The commercial offer will include rates of items/services called for and the technical offer will not indicate the rates. Both types of offers are to be enclosed in separate covers and each envelope shall be properly sealed bearing the signature of the bidder. Each cover shall indicate type of offer, number and date of IT and IT opening date. Thereafter both the envelopes (technical and commercial offer) shall be

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placed in one envelope (second cover) duly sealed and signed. This cover should bear the address of the procurement agency indicating, issuance date of IT and No, with its opening date. This should be further placed in another cover (third cover), addressed and indicated in the tender documents, without any indication that there is a tender within it.

e. **FORM DP-1, DP-2, DP-3 and Questionnaires.** Form DP-1, DP-2 (alongwith annexes), DP-3 and Questionnaires duly filled in are to be submitted with the offer duly stamped/signed by the authorized signatory/person. It is pertinent to mention that all these are essential requirement for participation in the tender.

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f. The tender duly sealed will be addressed to the following:-

Directorate of Procurement (Navy)
through Bahria Gate Near SNIDS
Centre, CDA Market
at Naval Residential Complex
Sector E-8, Islamabad

5. **Date and Time For Receipt of Tender.** Tender must reach this office by the date and time specified in the Schedule to Tender (Form DP-2) attached. This Directorate will not accept any excuse of delay occurring in post. Tenders received after the appointed/ fixed time will NOT be entertained. The appointed time will, however, fall on next working day in case of closed/forced holiday. Only legitimate/registered representatives of firm will be allowed to attend tender opening. In case your firm has sent tender documents by registered post or courier service, you may confirm their receipt at DP (Navy) on Phone No 051-9267412 well before the opening date / time.

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6. **Tender Opening.** Tenders will be opened as mentioned in the schedule to tender. Commercial offers will be opened at later stage if Technical Offer is found acceptable on examination by technical authorities of Service HQ. Date and time for opening of Commercial offer shall be intimated later. Only legitimate / registered representative of firm will be allowed to attend tender opening. Tenders received after date & time specified in DP-2 would be rejected without exception and returned un-opened i.a.w Rule 28 of PPRA-2004.

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7. **Validity of Offer.**

a. The validity period of quotations must be indicated and should invariably be 120 days from the date of opening of commercial / Financial Proposal offer or 30th Jun whichever is later. Firm undertakes to extend validity of offer if required by equal number of original bid period (i.e. 120 days or less as per original offer) i.a.w PPRA Rule-26.

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b. The quoting firm will certify that in case of an additional requirement of the contract items (s) in any qty(s) within a period of 12 months from the date of signing the contract, these will also be supplied at the ongoing contract rates with discount.

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| <p>8. <u>Part Bid.</u> Firm may quote for the whole or any portion, or to state in the tender that the rate quoted, shall apply only if the entire quantity/range of stores is taken from the firm. The Director Procurement reserves the right of accepting the whole or any part of the tender or portion of the quantity offered, and firm shall supply these at the rate quoted.</p> | <p>Understood
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| <p>9. <u>Quoting of Rates.</u> Only one rate will be quoted for entire quantity, item wise. In case quoted rates are deliberately kept hidden or lumped together to trick other competitors for winning contract as lowest bidder, DP(N) reserves the right to reject such offers on-spot besides confiscating firm's Earnest Money / Bid Security and take appropriate disciplinary action. Conversion rate of FE/LC components will be considered w.e.f. opening of commercial offer as per PPRA Rule-30(2).</p> | <p>Understood
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| <p>10. <u>Return of I/T.</u> ITs are to be handled as per following guidelines:</p> <p>a. In case you are Not quoting, please return the tender inquiry stating the reason of NOT quoting. In case of failure to return the ITs either quoted or not quoted consequently on three occasions, this Directorate, in the interest of economy, will consider the exclusion of your firm's name from our future distribution list of invitation to tender.</p> <p>b. For registered firm(s), case will be referred to DGDP for necessary administrative action if firms registered / indexed for tendered items/stores do not quote / participate.</p> <p>c. It is a standard practice to invite all firm(s) including those un-registered with DGDP who gave their preliminary budgetary/ technical proposals to end users / indentors. If your firm has been invited to participate in the tender, you must either participate in tender. In case of your inability to do so, you must inform DP (Navy) by a formal letter/email.</p> | <p>Understood
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| <p>11. <u>Withdrawal of Offer.</u> Firms shall not withdraw their commercial offers before signing of the contract and within validity period of their offers. In case the firm withdraws its offer within validity period and before signing of the contract, Earnest Money of the firm shall be confiscated and disciplinary action may also be initiated for embargo up to 01 year.</p> | <p>Understood
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| <p>12. <u>Provision of Documents in case of Contract.</u> In case any firm wins a contract, it will deposit following documents before award of contract:</p> <p>a. Proof of firm's financial capability.</p> <p>b. Foreign Seller has to provide its Registration Number issued by respective Department of Commerce authorizing export of subject stores.</p> <p>c. Principal/Agency Agreement.</p> <p>d. Registration with DGDP (Provisional Registration is mandatory)</p> | <p>Understood
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| <p>13. <u>Treasury Challan.</u></p> <p>a. Offers by registered firms must be accompanied with a Challan form of Rs.200/- (obtainable from State Bank of Pakistan/Government</p> | <p>Attached</p> ☐ | <p>Not
Attached</p> ☐ |

Treasury) and debit able to Major Head C02501-20, Main Head-12, Sub Head „A“ Miscellaneous (Code Head 1/845/30). Each offer will be covered by one Challan.

b. Firms, un-registered / un-indexed with DGDP (Registration Section) are to participate in the tender competition accompanied by Challan Form of Rs **300** in favour of CMA (DP).

14. **Earnest Money/Tender Bond:-** Your tender must be accompanied by a **Call Deposit Receipt (CDR) in favor of CMA (DP)**, Rawalpindi for the following amounts:-

Attached

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a. **Rates for Contract.** The rate of earnest money and its maximum ceiling for different categories of firms would be as under:-

(i) **Registered/Indexed/Pre-Qualified Firms.** 2% of the quoted value subject to maximum ceiling of Rs. 0.500 Million.

(ii) **Registered/Pre-Qualified but Un-indexed Firms.** 3% of the quoted value subject to maximum ceiling of Rs. 0.750 Million.

(iii) **Unregistered/not Pre-Qualified/Un-indexed Firms.** 5% of the quoted value subject to maximum ceiling of Rs. 01.00 Million.

b. **Return of Earnest Money**

(i) Earnest money to the unsuccessful bidders will be returned on finalization of the contract.

(ii) Earnest money of the firm/firms with whom contract is concluded will be returned on submission of Bank Guarantee and its acceptance by CMA (DP).

15. **Documents for provisional registration:** In case your firm wins a contract on Earnest Money (EM) , it will deposit following documents to DGDP (Registration Section) before the award of contract for provisional registration:-

S No	Local Supplier	Foreign Supplier
a.	Three filled copies of SVA-8121 of each member of management.	Three filled copies of SVA-8121-D of each member of management.
b.	Three filled copies of SVA-8121-A	Three filled copies of SVA-8121.
c.	Three photocopies of NIC for each member of management.	Three photocopy of Resident Card or equivalent identification Card for each member of management.
d.	Three PP size photographs for each member of management.	Three PP size Photographs for each member of management.
e.	Challan Form	Challan Form
f.	Bank Statement for last one year.	Financial standing/audit balance sheet
g.	Photocopy of NTN	Photocopy of passport
h.	Foreign Principal Agency	Agency Agreement in case of

	Agreement in case of local agent.	Trading House/ Exporter /Stockiest etc.	Company/
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16. **Inspection Authority.** CINS, Joint Inspection will be carried out by INS, Consignee & Specialist User or a team nominated by Pakistan Navy. CINS inspection shall be as prescribed in DP-35 and PP & I (Revised 2017) or as per terms of the contract.

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17. **Condition of Stores.** Brand new stores will be accepted on Firm's Warranty/Guarantee Form DPL-15 enclosed with contract.

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18. **Documents Required.** Following documents are required to be submitted along with the quote:

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a. OEM/Authorized Dealer/Agent Certificate along with OEM Dealership Evidence.

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b. The firm/supplier shall provide correct and valid e-mail and Fax No to CINS and DP(N). Supplier/contracting firm shall either provide OEM Conformance Certificate to CINS or is to be e-mailed to CINS under intimation to DP (Navy). Hard copy of COC must follow in any case through courier. On receipt, CINS shall approach the OEM for verification of Conformance Certificates issued by OEM. Companies/firms rendering false OEM Conforming Certificates will be blacklisted.

c. Original quotation/Principal/OEM proforma invoice.

d. In case of bulk proforma invoice, a certificate that prices indicated in the bulk proforma invoice have not been decreased since the date of bulk proforma invoice from the manufacturers/suppliers.

e. Submit breakup of cost of stores/services on the following lines:

(i) Imported material with break down item wise along-with import duties.

(ii) Variable business overheads like taxes and duties imposed by the federal/provincial government as applicable:-

(1) General Sales Tax

(2) Income Tax

(3) Custom Duty. PCT code along with photocopy of the related page is to be attached where applicable.

(4) Any other tax/duty.

(iii) Fixed overhead charges like labour, electricity etc.

(iv) Agent commission/profit, if any.

(v) Any other expenditure/cost/service/remuneration as asked for in the tender.

19. **Rejection of Stores/Services.** The stores/services offered as a result of contract concluded against this tender may be rejected as follows:

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a. 1st rejection on Govt. expense

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- b. 2nd rejection on supplier expense
- c. 3rd rejection contract cancellation will be initiated.

20. **Security Deposit/Bank Guarantee** . To ensure timely and correct supply of stores the firm will furnish an unconditional Bank Guarantee(BG) from a schedule Bank for an amount upto 10 % of the contract value (excluding Taxes, duties/freight handling charges) on a Judicial Stamp Paper (All pages) of the value of (Rs 100.00) as per prescribed format or in shape of CSD/Bank draft. The Bank Guarantee shall be endorsed in favour of CMA (DP) Rawalpindi who is the Accounts Officer specified in the contract. The CMA (DP) Rawalpindi has the like power of seeking encashment of the Bank Guarantee as if the same has been demanded by the purchaser himself. The Bank Guarantee shall be produced by the supplier within 30 days from the date of issue of the contract and remain valid for upto 60 days after completion of warranty period and remain in force till one year ahead of the delivery date given in the contract. If delivery period is extended, the supplier shall arrange the extension of Bank Guarantee within 30 days after the original delivery period to keep its validity always one year ahead of the extended delivery period. The BG form can be obtained from DP(N) on e-mail address given on page 1. Format of BG is enclosed at Annex B.

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21. **Integrity Pact**. There shall be “zero tolerance” against bribes, gifts, commission and inducement of any kind or their promises thereof by Supplier / Firm to any Government official / staff whether to solicit any undue benefit, favour or otherwise. Following provisions must be clearly read & understood for strict compliance:

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a. Integrity Pact shall be applicable to all tenders / contracts irrespective of their financial value. However, a written Integrity Pact shall be signed for contracts exceeding Rs 10 Million between the procuring agency and the supplier / contractor i.a.w Rule-7 of PPRA-2004. The form is available at www.ppra.org.pk or can be requested at dpn@paknavy.gov.pk

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b. If a Supplier / Contractor is found involved in any unbusiness-like / unethical activity, same would be considered a serious breach of the Integrity Pact. DP (Navy) shall take severe disciplinary action against that person(s) and the firm / company, which may include, but not limited to, **PERMANENT BLACKLISTING** of firm / company through DGDP and legal action against the individual (s) involved as per Pakistan"s Code of Criminal Procedure.

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c. It is strictly forbidden to socialize, call or meet any official / staff of DP (Navy) in private or during off hours. If any official / staff from Purchaser side asks for any undue favour or gratification directly or indirectly, the matter is to be immediately brought to the personal notice of Director Procurement (Navy) on Tel: 051-9267412 or through a personal meeting in office. Privacy of firms and their Reps sharing such information will be guaranteed without any prejudice to their normal business activities.

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22. **Correspondence**. All correspondence will be addressed to the Purchaser i.e. DP (Navy). Correspondence with regard to payment or issue of

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delivery receipt may be addressed to CMA Rawalpindi & Consignee respectively with copy endorsed to the DP (Navy).

23. **Pre-shipment Inspection.** PN may send a team of officers including DP(N) member for the inspection of major equipments and machinery items at OEM premises as per terms of contract. If not already provided for and mentioned in the I.T, firm(s) must clarify the place, number of persons, duration and whether expenses on such visits would be borne by the Purchaser or Contractor. In case contractor is responsible for bearing such expenses, detailed breakdown of the same should be given separately in the commercial offer.

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24. **Amendment to Contract.** Contract may be amended/modified to include fresh clause (s) modify the existing clauses with the mutual agreement by the supplier and the purchaser; such modification shall form an integral part of the contract.

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25. **Discrepancy.** The consignee will render a discrepancy report to all concerned within 60 days after receipt of stores for discrepancies found in the consignment. The quantities found short are to be made good by the supplier, free of cost.

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26. **Price Variation.**

a. Prices offered against this tender are to be firm and final.

b. Where the prices of the contracted stores/raw material are controlled by the government or an agency competent to do so on government behalf then price increase/decrease will be allowed at actual on case to case basis on production of government notification by the Supplier for the subject stores where the firms are contractually obliged and bound to produce the stores from raw materials supplied by government/State controlled departments in consultation with Military Finance.

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c. Except for calculation or typographical errors, the rates of the contracts not having a price variation clause PVC clause will not be increased subsequently. But when such an increase is considered desirable in the interest of expeditious supply of stores and is necessitated by the circumstances beyond the control of the Supplier, the case may be decided accordingly.

27. **Force Majeure.**

a. The supplier will not be held responsible for any delay occurring in supply of equipment due to event of Force Majeure such as acts of God, War, Civil commotion, Strike, Lockouts, Act of Foreign Government and its agencies and disturbance directly affecting the supplier over which events or circumstances the supplier has no control. In such an event the supplier shall inform the purchaser within 15 days of the happening and within the same timeframe about the discontinuation of such circumstances/happening in writing. Non-availability of raw material for the

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manufacture of stores, or of export permit for the contracted stores from the country of its origin, shall not constitute Force Majeure.

b. The Supplier shall provide the Purchaser with all the necessary proof of the occurrence of the events and its effect on the contract performance within 30 days from the start to force majeure event.

c. The Purchaser shall be entitled to conduct investigation into the cause of delay reported by the Supplier.

d. Where the delay was due to genuine force majeure event it shall extend the delivery for a period of equal to the period in which such force majeure remains operative.

e. Such extension in delivery period, due to force majeure, shall not entitle the Suppliers to claim any extra from the Purchaser.

28. **Arbitration.** Parties shall make their attempt to settle all disputes arising under this contract through friendly discussions in good faith. In the event that either party shall perceive such friendly discussion to be making insufficient progress towards settlement of dispute (s) at any time, then such party may be written notice to the other party refer the dispute (s) to final and binding arbitration as provided below:

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a. The dispute shall be referred to Secy (DP) for his discussion.

b. The venue of the arbitration shall be the place as the purchaser at his discretion may determine.

c. Decision of Secy (DP) shall be final and binding on both the parties.

d. In course of arbitration the contract shall be continuously be executed except that part which is under arbitration

e. All proceedings under this clause shall be conducted in English language and in writing

29. **Court of Jurisdiction.** In case of any dispute only court of jurisdiction at Rawalpindi, Pakistan shall have jurisdiction to decide the matter.

30. **Liquidated Damages(LD).** Liquidated Damages upto 2% per month are liable to be imposed on the suppliers by the purchaser in accordance with DP-35, if the stores supplied after the expiry of the delivery date without any valid reasons. Total value of LD shall not exceed 10% of the contract value.

31. **Risk Purchase.** In the event of failure on the part of supplier to comply with the contractual obligations the contract will be cancelled at the Risk and Expense (RE) of the supplier in accordance with DP-35.

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| <p>32. <u>Compensation Breach of Contract.</u> If the contractor fails to supply the contracted stores or contract is cancelled either on RE or without RE or contract become ineffective due to default of supplier / seller or stores / equipment declared defective and caused loss to the Government, contractor shall be liable to pay to the Government compensation for loss or inconvenience resulting for his default or from the rescission of his contract when such default or rescission take place such compensation will be in excess to the RE amount, if imposed by the competent authority. Compensation amount in terms of money will be decided by the purchase officer and will be deposited by contractor / seller in Government treasury in the currency of contract.</p> | Understood
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| <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> | <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> | <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> |
| <p>33. <u>Gratuities/Commission/Gifts.</u> No commission, rebate, bonus, fee or compensation in any form shall be paid to any local or foreign agent, consultant representative, sales promoter or any intermediary by the Manufacturer/Supplier except the agent commission payable as per the agent commission policy of the government and as amended from time to time and given in the contract. Any breach of such clause(s) of the contract by Manufacturer/Supplier and/or their sole nominated representative may result in cancellation of the contract blacklisting of the Manufacturer/Supplier financial penalties and all or any other punitive measure which the purchaser may consider appropriate.</p> | Understood
agreed | Understood
not agreed |
| <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> | <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> | <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> |
| <p>34. <u>Termination of Contract.</u></p> <p>a. If at any time during the currency of the contract the Purchaser decides to terminate the contract for any reason whatsoever (other than for reasons of Non-Delivery) he shall have right to do so by giving the Supplier a registered notice to that effect. In that event the Purchaser will accept delivery at the contract price and terms of such stores/goods/services which are in the actual process of manufacture that is completed and ready for delivery within thirty days after receipt by the Supplier of such notice.</p> <p>b. In the case of remainder of the undelivered stores/goods/services the Purchaser may elect either:</p> <p style="margin-left: 40px;">(i) To have any part thereof completed and take the delivery thereof at the contract price or.</p> <p style="margin-left: 40px;">(ii) To cancel the remaining quantity and pay to the Supplier for the articles or sub-components or raw materials purchased by the Supplier and are in the actual process of manufacture at the price to be determined by the Purchaser. In such a case materials in the process of manufacture shall be delivered by the Supplier to the Purchaser.</p> <p style="margin-left: 40px;">(iii) No payment shall however be made for any materials not yet in the actual process of manufacture on the date notice of cancellation is received.</p> <p>c. Should the Supplier fail to deliver goods/services in time as per quality terms of contract or fail to render Bank Guarantee within the</p> | Understood
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| <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> | <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> | <input style="width: 30px; height: 20px; border: 1px solid black;" type="checkbox"/> |

stipulated time period or any breach of the contract the Purchaser reserves the right to terminate/cancel the contract fully or any part thereof at the risk and expense (RE) of the Supplier.

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| <p>35. <u>Rights Reserved.</u> Directorate of Procurement (Navy), Rawalpindi reserves full rights to accept or reject any or all offers including the lowest. Grounds for such rejections may be communicated to the bidder upon written request, but justification for grounds is not required as per PPRA Rule 33 (1).</p> | <p>Understood
agreed</p> <input data-bbox="1364 304 1421 367" type="checkbox"/> | <p>Understood
not agreed</p> <input data-bbox="1510 304 1567 367" type="checkbox"/> |
| <p>36. <u>Secrecy/Non-Disclosure Agreement (NDA).</u> The Supplier shall undertake as per attached Annex-C, that any information about the sale/purchase of stores under this contract shall not be communicated to any person other than the manufacturer of the stores, or to any press or Agency not authorized by DP(N) to receive it. Any breach of it shall be punishable under the Official Secrets Act, 1923 in addition to termination of the contract at the risk of the Supplier.</p> | <p>Understood
agreed</p> <input data-bbox="1347 483 1404 546" type="checkbox"/> | <p>Understood
not agreed</p> <input data-bbox="1494 483 1550 546" type="checkbox"/> |
| <p>37. <u>Acknowledgment.</u> Firms will send acknowledgement slips within 07 days from the date of downloading of IT from the PPRA Website i.e. WWW.PPRA.ORG.PK</p> | <p>Understood
agreed</p> <input data-bbox="1372 798 1429 850" type="checkbox"/> | <p>Understood
not agreed</p> <input data-bbox="1518 798 1575 850" type="checkbox"/> |
| <p>38. <u>Disqualification.</u> Offers are liable to be rejected if:-</p> <ul style="list-style-type: none"> a. Received later than appointed/fixed date and time. b. Offers are found conditional or incomplete in any respect. c. There is any deviation from the General /Special/Technical Instructions contained in this tender. d. Forms DP-1, DP-2 (along with Annexes), and DP-3 duly signed, are NOT received with the offers. d. Taxes and duties, freight/transportation and insurance charges NOT indicated separately as per required price breakdown mentioned at Para 17. e. Treasury challan is NOT attached with the offer. f. Multiple rates are quoted against one item. g. Manufacturer"s relevant brochures and technical details on major equipment assemblies are not attached in support of specifications. j. Subject to restriction of export license. k. Offers (commercial/technical) containing non-initialed/unauthenticated amendments/corrections/overwriting. l. If the validity of the agency agreement is expired. m. The commercial offer against FOB/CIF/C&F tender is quoted in local currency and vice versa. n. Principals invoice in duplicate clearly indicating whether prices quoted are inclusive or exclusive of the agent commission is not enclosed. p. Earnest money is not provided. q. Earnest Money is not provided with the technical offer (or as specified). r. If validity of offer is not quoted as required in IT or made subject to confirmation later. s. Offer made through Fax/E-mail/Cable/Telex. t. If offer is found to be based on cartel action in connivance with other sources/ participants of the tender. | <p>Understood
agreed</p> <input data-bbox="1372 997 1429 1060" type="checkbox"/> | <p>Understood
not agreed</p> <input data-bbox="1518 997 1575 1060" type="checkbox"/> |

- u. If OEM and principal name and complete address is not mentioned.
- v. Original Principal Invoice is not attached with offer.

39. **Appeals by Supplier/Firm.** Any aggrieved Supplier/Firm against the decision of DP (N) or CINS or any other problematic area towards the execution of the contract may prefer an Appeal to Standing Appeal Committee (SAC) comprising PN Officers and military finance rep at Naval headquarters, Islamabad. The detail and timeline for preferring appeals is given below:

Understood
agreed

☐

Understood
not agreed

☐

S.No.	Category of Appeal	Limitation Period
a.	Appeals for liquidated damages	Within 30 days of decision
b.	Appeals for reinstatement of contracts	Within 30 days of decision
c.	Appeals for risk & expense amount	Within 30 days of decision
d.	Appeals for rejection of stores	Within 30 days of decision
e.	Appeals in all other Cases	Within 30 days of decision

40. **Limitation.** Any appeal received after the lapse of timelines given in para 39 above shall not be entertained.

Understood
agreed

☐

Understood
not agreed

☐

41. **For Firms not Registered with DGDP.** Firms not registered with DGDP undertake to apply for registration with DGDP prior signing of Contract. Details can be found on DGDP website www.dgdp.gov.pk. These firms can participate in tender iaw paras 12 and 14 above and provision of documentary proof regarding financial status of the firm alongwith NTN and GST registration copies.

Understood
agreed

☐

Understood
not agreed

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42. Firms which are not registered with DGDP should initiate provisional registration in accordance with Para 41. Besides, ground check by Field Security (FS) Team will be made for security clearance related to participation in the tender after technical opening. Firms undertake to provide following documents for ground check by FS Team:

Understood
agreed

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Understood
not agreed

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- a. NTN
- b. Income Tax Return
- c. Sales Tax Return
- d. Sales Tax Certificate
- e. Chamber of Commerce Industry Certificate
- f. Professional Tax Certificate (Excise & Taxation)
- g. Office/Home/Ware House Property documents
- h. Utility Bills (Phone/Electricity)
- j. Firm Vehicle/Personal Vehicle
- k. CEO Visiting Card/NIC Copy, 03Xspecimen signature of CEO
- l. DGDP Registration letter
- m. Firm Bank Statement
- n. Non Black List Certificate
- p. 2 X Witness + CNIC and Mobile Numbers
- q. Police Verification
- r. Agency Agreement
- s. OEM Certificate
- t. ISO Certificate
- u. Stock List with value

- v. Company Profile/Broachers
- w. Employees List
- x. Firm Categories
- y. Sole Proprietor Certificate
- z. Partnership Deed
- aa. Pvt Limited
- ab. Memorandum of Articles
- ac. Form 29 and Form A
- ad. Incorporation Certificate

43. We solemnly undertake that all IT clauses marked as "Understood & Agreed" shall not be changed / withdrawn after tender opening. The IT provisions accepted shall form the baseline for subsequent contract negotiations.

Understood
agreed

☐

Understood
not agreed

☐

44. The above terms and conditions are confirmed in total for acceptance.

45. Format of DPL-15 (warranty form) and PBG are enclosed as Annex A & B.

Sincerely yours,

(To be Signed by Officer Concerned)

Rank: _____

NAME: _____

DPL-15 (WARRANTY)

FIRM'S NAME: M/s _____

1. We hereby guarantee that the articles supplied under the terms of this contract are produced new in accordance with approved drawings/specification and in all respect in accordance with the terms of the contract, and the materials used whether or not of our manufacture are in accordance with the latest appropriate standard specifications, as also in accordance with the terms of complete of good workmanship throughout and that we shall replace FOR/DDP Karachi free of cost every article or part thereof use or in use shall be found defective or not within the limits and tolerance of specifications requirement or in any way not in accordance with the terms of the contract.
2. In case of our failure to replace the defective stores free of cost within a reasonable period, we shall refund the relevant cost FOR/DPP Karachi (As the case may be in currency in with received).
3. This warranty shall remain valid for **01 Year** after the acceptance of stores by the end user

The signature must be the same as that on the tender/contract, or if otherwise must be shown to be the signature of a person capable of giving a guarantee on behalf of the contractor



SIGNATURE _____

DATE _____

PLACE _____

**BANK GUARANTEE FOR PERFORMANCE ON
JUDICIAL STAMP PAPER OF RS. 100/- OR
AS SUITABLE TO THE AMOUNT OF BG**

- (i) Contract No. _____ dated _____
(ii) Name of Firm/Contractor _____
(iii) Address of Firm/Contractor _____
(iv) Name of Guarantor _____
(v) Address of Guarantor _____
(vi) Amount of Guarantee Rs. _____
(_____)
(in words)
(vii) Date of expire of Guarantee _____

**To: The President of Islamic Republic of Pakistan through the
Controller of Military Accounts (Defence Purchase) Rawalpindi.**

Sir,

1. Whereas your good self have entered into Contract No. _____ dated _____
_____ with Messer"s _____

(Full Name and Address)

hereinafter referred to as our customer and that one of the conditions of the Contract is the submission of unconditional Bank Guarantee by our customer to your good self for a sum of Rs. _____
Rupees/FE (as applicable) _____

2. In compliance with this stipulation of the contract, we hereby agree and undertake as under: -

a. To pay to you unconditionally on demand and/or without any reference to our Customer and amount not exceeding the sum or Rs. _____ Rupees or FE (as applicable) _____ as would be mentioned in your written Demand Notice.

b. To keep this Guarantee in force till _____.

c. That the validity of this Bank Guarantee shall be kept one clear year ahead of the original/extended delivery period or the warrantee of the stores which so ever is later in duration on receipt of information from our Customer i.e. M/s _____ or from your office. Claim, if any must be duly received by us on or before this day. Our liability under this Bank Guarantee shall cease on the closing of banking hours on the last date of the validity of this Bank Guarantee. Claim received thereafter shall not be entertained by whether you suffer a loss or not. On receipt of payment under this guarantee, this document i.e. Bank Guarantee must be clearly cancelled, discharged and returned to us.

d. That we shall inform your office regarding termination of the validity of this Bank Guarantee one clear month before the actual expiry date of this Guarantee.

e. That with the consent of our customer you may amend/alter any term/clause of the contract or add/delete any term/clause to/from this contract without making any reference to us. We do not reserve any right to receive any such amendment/alternation or addition/deletion provided such like actions do not increase our monetary liability under this Bank Guarantee which shall be limited only to Rs. _____(Rupees _____).

f. That the Bank Guarantee herein before given shall not be affected by any change in the constitution of the Bank or Customer/Seller or Vendor.

g. That this an unconditional Bank Guarantee, which shall be encashed on sight on presentation without any reference to our Customer/Seller or Vendor.

Guarantor

Dated: _____

(Bank Seal and Signatures)

UNDERTAKING / NON – DISCLOSURE CERTIFICATE

I _____
(Name & Appointment)

On behalf of _____
(Name for firm / Contractor)

(With address and Telephone number)

2. Do hereby submit an under taking to abide by the provision of Official Secrets Act 1923 and conditions hereinafter contained. Breach of these provisions on my part or any employee of the firm, in addition to any other penalty under law, will render immediate ceasing of further interaction and meetings.

Sig _____
Status/
Appointment _____
Place _____
Date _____

1. Signature of witness _____
Name (in block capital) _____
CNIC No _____
(Please attach photocopy)
Address _____

Seal & Date

2. Signature of witness _____
Name (in block capital) _____
CNIC No _____
(Please attach photocopy)
Address _____

Seal & Date

NECESSARY DATA FOR ISSUANCE OF CONTRACTS ON EARNEST MONEY
IMPORTANT

Each column must be filled in with BLOCK CAPITAL LETTERS,
incompletion shall render disqualification.

1. Name : _____
2. Father's Name : _____
3. Address (Residential) : _____
4. Designation in Firm : _____
5. CNIC : _____
(Attach Copy of CNIC)
6. NTN : _____
(Attach Copy of NTN)
7. Firm's Address : _____
8. Date of Establishment of Firm : _____
9. Firm's Registration Certificate with FBR/Chamber of Commerce/Registrar of Companies.
(Attach Copy of relevant CERTIFICATE)
10. In case PARTNERSHIP (Attach particulars at serial 1,2,3,4,5 and 6 of each partner).

(Kindly fill in the above form and forward it under your own letter head with contact details)

CHECK OFF LIST

Tender Control No: 340

Firm Name: M/s

Opening Date: _____

Documents Attached	Yes
Technical offer in duplicate	
Commercial offer	
Technical Specs	
Earnest Money (Original+ Copy)	
Bank Challan	
DP-1 Form	
DP-2 Form	
DP-3 Form	
Tax Filling Proof	
DGDP Registration Letter	
Authorization Letter	
Principal Invoice	

Sig_____